

**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble D.S.R. Varma, J.**

**Hon'ble Abhinava Upadhya, J.**

Case is passed over on the illness slip of Sri Mayank Agarwal, counsel for the petitioners.

**Order Date :-** 18.11.2010

skv

**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble D.S.R. Varma, J.**

**Hon'ble Shashi Kant Gupta, J.**

On the request of the learned counsel for the petitioners, the case is passed over for the day.

List in the next cause list.

**Order Date :-** 24.11.2010

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**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble D.S.R. Varma, J.**

**Hon'ble Abhinava Upadhya, J.**

List has been revised. None appears for the petitioner even in the revised call. Sri A.N. Shukla, learned counsel appearing for the respondents is, however, present.

List the matter peremptorily in the next cause list.

**Order Date :-** 8.12.2010

SA

**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble D.S.R. Varma, J.**

**Hon'ble Abhinava Upadhya, J.**

As prayed by learned counsel for the petitioner, list this case in the next cause list.

**Order Date :-** 17.2.2011

SA

**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble D.S.R. Varma, J.**

**Hon'ble Abhinava Upadhya, J.**

Passed over on the illness slip of learned counsel for the petitioner, Ms.  
Seema Agrawal.

**Order Date :-** 24.2.2011

vs

**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble Rakesh Tiwari, J.**

**Hon'ble Vijay Prakash Pathak, J.**

Passed over on the illness slip of Ms. Seema Agarwal, counsel for the petitioners. List peremptorily after two weeks.

**Order Date :-** 14.9.2011

SM

**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble Rakesh Tiwari, J.**

**Hon'ble Vijay Prakash Pathak, J.**

Passed over on the illness slip of Sri Mayank Agrawal for petitioner. List in the week commencing 17.10.2011. It is made clear that matter shall not be adjourned on the next date of listing.

**Order Date :-** 26.9.2011

SNT/

**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble Rakesh Tiwari, J.**

**Hon'ble Vijay Prakash Pathak, J.**

Passed over on the illness slip of Sri Mayank Agrawal, learned counsel for the petitioners.

List after two weeks peremptorily.

**Order Date :-** 17.10.2011

V.K.J.

**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble Rakesh Tiwari, J.**

**Hon'ble Vijay Prakash Pathak, J.**

Learned counsel for the petitioner submits that though supplementary counter affidavit does not appear to have been served upon him, but he prays for and is granted three weeks' time for filing supplementary rejoinder affidavit. List after three weeks. In the meantime, learned counsel for the petitioner either apply for copy of supplementary counter affidavit or may take the same by A.N. Shukla, appearing for the respondent.

**Order Date :-** 2.11.2011

RCT/-

**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble Rakesh Tiwari, J.**

**Hon'ble Vijay Prakash Pathak, J.**

Passed over on the illness slip of Sri Mayank Agrawal for petitioner.

List in the next cause list.

**Order Date :-** 24.11.2011

SNT/

**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble Satya Poot Mehrotra, J.**

**Hon'ble Surendra Kumar, J.**

Sri Mayank Agrawal, learned counsel for the Petitioners has sent illness slip today. Sri A.N. Shukla, learned counsel for the Respondents is present.

The case is passed over for the day.

**Order Date :-** 16.12.2011

Rmk.

**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble Satya Poot Mehrotra, J.**

**Hon'ble Surendra Kumar, J.**

Sri Mayank Agrawal, learned counsel for the Petitioners has sent illness slip today.

The case is passed over for the day.

**Order Date :-** 6.1.2012

Rmk.

**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble Satya Poot Mehrotra, J.**

**Hon'ble Surendra Kumar, J.**

Sri Mayank Agrawal, learned Counsel for the Petitioners has sent illness-slip today.

The case is passed over for the day.

**Order Date :-** 20.1.2012

Rmk.

**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble Satya Poot Mehrotra, J.**

**Hon'ble Yogesh Chandra Gupta, J.**

Shri Mayank Agarwal, learned counsel for the petitioners has sent illness slip.

The case is passed over for the day.

**Order Date :-** 7.2.2012

SFH

**Court No. - 9**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Petitioner Counsel :-** Mayank Agrawal, Seema Agrawal

**Respondent Counsel :-** H.P. Dube, A.N. Shukla

**Hon'ble Satya Poot Mehrotra, J.**

**Hon'ble Vijay Prakash Pathak, J.**

Shri Mayank Agrawal, learned counsel for the petitioners has sent illness-slip today. The case is passed over for the day.

**Order Date :-** 14.2.2012

Ajeet

**Court No. - 29**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Counsel for Petitioner :-** Mayank Agrawal, Seema Agrawal

**Counsel for Respondent :-** H.P. Dube, A.N. Shukla, SC

**Hon'ble Tarun Agarwala, J.**

**Hon'ble Abhai Kumar, J.**

List in the next cause list showing the name of Sri Baleshwar Chaturvedi as learned counsel for the respondents.

**Order Date :-** 8.2.2017

AKJ

**(Abhai Kumar, J.)**

**(Tarun Agarwala, J.)**

**Court No. - 29**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Counsel for Petitioner :-** Mayank Agrawal, Seema Agrawal

**Counsel for Respondent :-** H.P. Dube, A.N. Shukla, SC

**Hon'ble Tarun Agarwala, J.**

**Hon'ble Abhai Kumar, J.**

The case is passed over on the illness slip of the learned counsel for the petitioners.

**Order Date :-** 15.2.2017

Israr

(Abhai Kumar, J.)      (Tarun Agarwala, J.)

**Court No. - 3**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited & Others

**Counsel for Petitioner :-** Mayank Agrawal

**Counsel for Respondent :-**

**Hon'ble Pritinker Diwaker,J.**

**Hon'ble Saral Srivastava,J.**

Sri Mayank Agarwal, one of the counsel for the petitioners has sent illness slip.

List this case on 27th November 2018.

As the stay is operating in favour of the petitioners, further adjournment shall not be granted as a matter of right.

**Order Date :-** 12.11.2018

Ishan

**Court No. - 21**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation And Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited And Others

**Counsel for Petitioner :-** Mayank Agrawal, Seema Agrawal

**Counsel for Respondent :-** H.P. Dube, A.N. Shukla, Baleshwar Chaturvedi, SC

**Hon'ble Pradeep Kumar Singh Baghel, J.**

**Hon'ble Pankaj Bhatia, J.**

At the request of learned counsel for the petitioners, the matter is adjourned for the day.

List this case in the next cause list.

**Order Date :-** 29.1.2019

Hasnain

**Court No. - 39**

**Case :-** WRIT - C No. - 38268 of 2007

**Petitioner :-** M/S Atul Industrial Corporation And Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Limited And Others

**Counsel for Petitioner :-** Mayank Agrawal, Seema Agrawal

**Counsel for Respondent :-** H.P. Dube, A.N. Shukla, Baleshwar Chaturvedi, SC

**Hon'ble Salil Kumar Rai, J.**

**Hon'ble Arun Kumar Singh Deshwal, J.**

Heard learned counsel for the parties.

Present petition has been filed challenging the order dated 21.07.2007 passed by Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Etawah directing the petitioners to construct a metering cubical near the main gate and give independent access to the main meter.

We do not find any illegality in the said order in light of Clause 4.1.5 (b) of the Electricity Supply Code, 2005 (hereinafter referred to as the 'Code') which provides that all EHT and HT consumers/applicants shall provide independent entry to the meter or metering cubic. 4.15 (a) of the Code provides that the licensee shall determine the point of supply such that the meters and other equipment are always accessible to the licensee without obstruction for inspection.

In view of the aforesaid, there is no jurisdictional error in the order passed by the Executive Engineer.

The contention of the petitioners is that the meter has been installed at a point at which it is independently accessible for inspection without any obstruction. If that be the case, petitioners have a remedy bringing the said fact to the notice of the Executive Engineer who shall take appropriate action, in accordance with law. In any case, there is no illegality in the impugned order dated 21.07.2007.

The petition is accordingly **dismissed**.

**Order Date :-** 22.5.2023

S.Chaurasia